

Amendment No. 1 to SB2137

Gardenhire
Signature of Sponsor

AMEND Senate Bill No. 2137*

House Bill No. 2504

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 40-35-120, is amended by adding the following as a new subsection:

(j) In determining the appropriate sentence for a defendant, the sentencing court shall determine whether the defendant is required to be sentenced as a repeat violent offender under this section or § 40-35-125. If the defendant is required to be sentenced as a repeat violent offender under only one (1) such statute, then the court shall sentence the defendant pursuant to the statute that requires sentencing as a repeat violent offender. If the defendant is required to be sentenced as a repeat violent offender under both statutes, then the defendant must be sentenced pursuant to this section.

SECTION 2. Tennessee Code Annotated, Title 40, Chapter 35, Part 1, is amended by adding the following as a new section:

40-35-125.

(a) As used in this section:

(1) "Prior conviction":

(A) Means the defendant was convicted of a violent offense that occurred on or after July 1, 2027, but before the violent offense for which the defendant is to be sentenced; provided, however, that a defendant who was convicted of multiple violent offenses based on conduct that occurred contemporaneously, occurred at the same location, and

represented a single continuous criminal episode with a single criminal intent shall only be considered to have a prior conviction for the offense that would result in the highest point allocation pursuant to this section;

(B) Does not include a finding or adjudication that the defendant committed an act as a juvenile that is designated as a violent offense if committed by an adult, unless the defendant was tried as an adult in criminal court pursuant to § 37-1-134 or § 37-1-191, or similar statutes of other states or jurisdictions, and was convicted of the violent offense in a criminal court and sentenced as an adult; and

(C) Includes convictions under the laws of any other state, government, or country that, if committed in this state, would have constituted a violent offense. If a felony from another jurisdiction is not a named violent offense and if the elements of the felony are the same as a violent offense, then the offense must be considered a prior conviction;

(2) "Repeat violent offender" means a defendant who is convicted of a violent offense, which occurred on or after July 1, 2027, and the combination of the strikes allocated pursuant to this section for the violent offense and the defendant's prior convictions equals:

(A) Three (3) or more strikes with at least two (2) of the strikes being for offenses listed in subdivision (a)(3)(A); or

(B) Three (3) or more strikes with one (1) of the strikes being for an offense listed in subdivision (a)(3)(A) and the other two (2) strikes being for offenses listed in subdivision (a)(3)(B) or (a)(3)(C); and

(3) "Violent offense" means any of the following offenses when committed on or after July 1, 2027:

(A) The following offenses, each of which results in the defendant receiving one (1) strike:

- (i) Female genital mutilation, as defined in § 39-13-110;
- (ii) Domestic assault, as defined in § 39-13-111, when the offense is a felony offense;
- (iii) Grave torture, as defined in § 39-13-117, if the defendant was a juvenile at the time of the offense and was convicted in criminal court and sentenced as an adult;
- (iv) Second degree murder, as defined in § 39-13-210;
- (v) Vehicular homicide, as defined in § 39-13-213(a)(2);
- (vi) Aggravated vehicular homicide, as defined in § 39-13-218;
- (vii) Aggravated kidnapping, as defined in § 39-13-304;
- (viii) Especially aggravated kidnapping, as defined in § 39-13-305;
- (ix) Trafficking for a commercial sex act, as defined in § 39-13-309;
- (x) Advertising commercial sexual abuse of a minor, as defined in § 39-13-315;
- (xi) Aggravated human trafficking, as defined in § 39-13-316;
- (xii) Aggravated robbery, as defined in § 39-13-402;
- (xiii) Especially aggravated robbery, as defined in § 39-13-403;
- (xiv) Carjacking, as defined in § 39-13-404;
- (xv) Aggravated rape, as defined in § 39-13-502;
- (xvi) Rape, as defined in § 39-13-503;
- (xvii) Aggravated sexual battery, as defined in § 39-13-504;

- (xviii) Sexual battery, as defined in § 39-13-505;
- (xix) Aggravated statutory rape, as defined in § 39-13-506(c);
- (xx) Aggravated rape of a child, as defined in § 39-13-531, if the defendant was a juvenile at the time of the offense and was convicted in criminal court and sentenced as an adult;
- (xxi) Especially aggravated rape, as defined in § 39-13-534, if the defendant was a juvenile at the time of the offense and was convicted in criminal court and sentenced as an adult;
- (xxii) Especially aggravated rape of a child, as defined in § 39-13-535, if the defendant was a juvenile at the time of the offense and was convicted in criminal court and sentenced as an adult;
- (xxiii) Indecent exposure, as defined in § 39-13-511, when the offense is a felony offense;
- (xxiv) Patronizing prostitution, as defined in § 39-13-514(b)(3);
- (xxv) Promoting prostitution, as defined in § 39-13-515;
- (xxvi) Public indecency, as defined in § 39-13-517, when the offense is a felony offense;
- (xxvii) Continuous sexual abuse of a child, as defined in § 39-13-518;
- (xxviii) Rape of a child, as defined in § 39-13-522, if the defendant was a juvenile at the time of the offense and was convicted in criminal court and sentenced as an adult;
- (xxix) Sexual battery by an authority figure, as defined in § 39-13-527;

(xxx) Solicitation of a minor, as defined in § 39-13-528, when the offense is a felony offense;

(xxxi) Soliciting sexual exploitation of a minor or exploitation of a minor by electronic means, as defined in § 39-13-529;

(xxxii) Statutory rape by an authority figure, as defined in § 39-13-532;

(xxxiii) Promoting travel for prostitution, as defined in § 39-13-533;

(xxxiv) Unlawful photographing in violation of privacy, as defined in § 39-13-605, when the offense is a felony offense;

(xxxv) Observation without consent, as defined in § 39-13-607, when the offense is a felony offense;

(xxxvi) Especially aggravated burglary, as defined in § 39-13-1004;

(xxxvii) Aggravated arson, as defined in § 39-14-302;

(xxxviii) Incest, as defined in § 39-15-302;

(xxxix) Child abuse or child neglect or endangerment, as defined in § 39-15-401, when the offense is a felony offense;

(xl) Aggravated child abuse or aggravated child endangerment or neglect, as defined in § 39-15-402;

(xli) Using a minor to produce, import, prepare, distribute, process, or appear in obscene material, as defined in § 39-17-902(b);

(xlii) Unlawful sale, distribution, or transportation with intent to sell or distribute a child-like sex doll, as defined in § 39-17-910(f);

(xliii) Sexual exploitation of a minor, as defined in § 39-17-1003;

(xliv) Aggravated sexual exploitation of a minor, as defined in § 39-17-1004;

(xlv) Especially aggravated sexual exploitation of a minor, as defined in § 39-17-1005;

(xlvii) Aggravated assault, as defined in § 39-13-102(a)(1)(A)(iii) or § 39-13-102(a)(1)(B)(iii), if the offense involved the use of a deadly weapon;

(xlviii) Aggravated assault, as defined in § 39-13-102(a)(1)(A)(iv);

(xlix) Aggravated assault, as defined in § 39-13-102, if the offense resulted in serious bodily injury to or the death of another;

(l) Aggravated assault against a first responder or nurse, as defined in § 39-13-116(b)(3), if the offense involved the use of a deadly weapon;

(i) Aggravated assault against a first responder or nurse, as defined in § 39-13-116(b)(1), (b)(2), or (b)(4); and

(ii) The following offenses when the offense is a felony offense:

(a) Facilitation, under § 39-11-403, to commit any of the offenses listed in this subdivision (a)(3)(A) or first degree murder, as defined in § 39-13-202;

(b) Criminal attempt, under § 39-12-101, to commit any of the offenses listed in this subdivision (a)(3)(A) or first degree murder, as defined in § 39-13-202;

(c) Solicitation, under § 39-12-102, to commit any of the offenses listed in this subdivision (a)(3)(A) or first degree murder, as defined in § 39-13-202; and

(d) Conspiracy, under § 39-12-103, to commit any of the offenses listed in this subdivision (a)(3)(A) or first degree murder, as defined in § 39-13-202;

(B) The following offenses, each of which results in the defendant receiving one-half (1/2) strike:

(i) Voluntary manslaughter, as defined in § 39-13-211;

(ii) Criminally negligent homicide, as defined in § 39-13-212;

(iii) Vehicular homicide, as defined in § 39-13-213(a)(1), (a)(3), or (a)(4);

(iv) Reckless homicide, as defined in § 39-13-215;

(v) Involuntary labor servitude, as defined in § 39-13-307;

(vi) Trafficking persons for forced labor or services, as defined in § 39-13-308;

(vii) Aggravated burglary, as defined in § 39-13-1003;

(viii) The manufacture, delivery, or sale of a controlled substance, as defined in § 39-17-417, where the instant offense is classified as a Class A, B, or C felony and the person has two (2) or more prior convictions for the manufacture, delivery, or sale of a controlled substance classified as a Class A, B, or C felony, pursuant to § 39-17-417, prior to or at the time of committing the instant offense;

(ix) Possessing or using a firearm or antique firearm during commission of or attempt to commit a dangerous felony, as defined in § 39-17-1324; and

(x) Driving under the influence with six (6) or more prior convictions, as defined in § 55-10-401; and

(C) The following offenses, each of which results in the defendant receiving one-quarter (1/4) strike:

(i) Any other felony offense; and

(ii) The following offenses, when the offense is a misdemeanor offense:

(a) Facilitation, under § 39-11-403, to commit any of the offenses listed in subdivision (a)(3)(A);

(b) Criminal attempt, under § 39-12-101, to commit any of the offenses listed in subdivision (a)(3)(A);

(c) Solicitation, under § 39-12-102, to commit any of the offenses listed in subdivision (a)(3)(A); and

(d) Conspiracy, under § 39-12-103, to commit any of the offenses listed in subdivision (a)(3)(A).

(b) In determining the number of strikes applicable to a defendant for purposes of sentencing pursuant to subsection (c), the court shall consider whether the defendant has had a three-year period of time with no criminal convictions. For each three-year period of time with no criminal convictions, the court shall deduct one-half (1/2) strike from the defendant's total number of strikes accumulated for offenses listed in subdivision (a)(3)(B) or (a)(3)(C).

(c)

(1) The court shall sentence a defendant who has been convicted of a violent offense that occurred on or after July 1, 2027, and that, in combination

with prior convictions for violent offenses, results in the defendant having three (3) or more strikes, at least two (2) of which are for offenses listed in subdivision (a)(3)(A), to imprisonment for life if the court finds beyond a reasonable doubt that the defendant is a repeat violent offender.

(2) The court shall sentence a defendant who has been convicted of a violent offense that occurred on or after July 1, 2027, and that, in combination with prior convictions for violent offenses, results in the defendant having three (3) or more strikes with one (1) of the strikes being for an offense listed in subdivision (a)(3)(A) and the other two (2) strikes being for offenses listed in subdivision (a)(3)(B) or (a)(3)(C), to the maximum term of imprisonment allowed within the appropriate sentencing range under this part, if the court finds beyond a reasonable doubt that the defendant is a repeat violent offender.

(d) The finding that a defendant is or is not a repeat violent offender is appealable by either party.

(e) In determining the appropriate sentence for a defendant, the sentencing court shall determine whether the defendant is required to be sentenced as a repeat violent offender under this section or § 40-35-120. If the defendant is required to be sentenced as a repeat violent offender under only one (1) such statute, then the court shall sentence the defendant pursuant to the statute that requires sentencing as a repeat violent offender. If the defendant is required to be sentenced as a repeat violent offender under both statutes, then the defendant must be sentenced pursuant to § 40-35-120.

SECTION 3. This act takes effect July 1, 2027, the public welfare requiring it, and applies to sentencing for offenses occurring on or after that date.